

		not represent another party in that action and an attempt to do so would constitute the unauthorized practice of law. (<i>J.W. v. Superior Court</i> (1993) 17 Cal.App.5th 958, 966.) However, the Court notes that Jacqueline and James are spouses who have both been served as defendants. Code of Civil Procedure section 371 provides: "If spouses are sued together, each may defend for his or her own right, but if one spouse neglects to defend, the other spouse may defend for that spouse's right also." The Court finds that because James is currently out of state and has not acted on his own behalf in defense of this action, that Jacqueline's submission of the instant motion on his behalf is not improper. However, Jacqueline is admonished that future attempts to represent James in this action where he has not neglected to defend himself may be unauthorized. The court is empowered to relieve a party "upon any terms as may be just . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473(b).) Application for an order for relief "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (<i>Ibid.</i>) Here, on September 29, 2025, Jacqueline filed an ex parte application for extension of time to serve an answer or other responsive pleading. That application was granted on October 2, 2025 and the Court ordered that a pleading must be served and filed no later than January 14, 2026. Default was entered against James upon the mistaken belief that the Court's October 2 order related to James's deadline to file a responsive pleading as well as Jacqueline's. The instant motion was timely filed shortly after the default was discovered. Based on the above, the Court finds that the default was entered as a result of mistake. The motion to set aside is therefore GRANTED. James is ORDERED to file an answer or other responsive pleading within 20 days. The Case management Conference is continued to September 24, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
206	Hoshour vs. Montgomery, 24-01392447	Plaintiffs David Guy Hoshour and Wensun Chen seek an order compelling Defendant Annelise Montgomery to provide further responses to Request for Production of Documents, Set 1 on October 11, 2025. (ROA 60) Plaintiffs also seek an order compelling responses to Form Interrogatories, Set One served on Defendant on October 11, 2025. (ROA 68)

These motions were filed by Plaintiffs David Hoshour and Wensun Chen, who are in pro per. (ROA 60, 68.)

Notably, in support of the Motions is a declaration by "Mark J. Kizer" who is "assisting Plaintiffs DAVID GUY HOSHOOR and WENSUN CHEN in this matter." (Declaration of Kizer para.1.) While Mr. Kizer indicates he has "personal knowledge of the facts set forth herein and could competently testify thereto", he fails to indicate how, or whether he is an attorney.

Where a response has been made to an RPD, but the demanding party is not satisfied with it, the remedy is a motion to compel further responses. [CCP § 2031.310]

This motion can be utilized to attack a response containing:

- Objections; or
- An agreement to comply that is incomplete; or
- A statement of inability to comply that is incomplete or evasive. [CCP § 2031.310(a)]

Plus, a response stating inability to comply with the CCP § 2031.010 demand shall state the following:

- That a diligent search and reasonable inquiry has been made in an effort to locate the item demanded; and
- The reason the party is unable to comply: e.g., the document:
 - never existed; or
 - has been lost or stolen; or
 - has been destroyed; or
 - is not in the possession, custody or control of the responding party, in which case, the response must state the name and address of anyone believed to have the document. [CCP § 2031.230]

Additionally, if a party to whom interrogatories are directed either fails to respond at all, or responds with objections or incomplete answers, the propounding party's remedy is to seek a court order compelling answers (or further answers) to the interrogatories. [CCP §§ 2030.290, 2030.300]

Here, on October 11, 2025 Plaintiffs served RPDS, Set 1 and Form Rogs, Set 1. (Decl. Kizer¶2.)

As to the RPDS, Defendant did not serve responses until December 16, 2025, responding only that, "I am currently not in possession of any of the requested documents."

This response does not comply with CCP § 2031.230 as set forth above.

As to the Form Rogs, Plaintiff provided no response whatsoever.

		As such, the Motions are GRANTED. Defendant to provide code compliant, supplemental, verified responses to the RPDS, Set 1 within 20 days of notice of this Court's ruling. Defendant to provide verified responses to Form Rogs, Set 1, without objections, within the same time. As to Plaintiffs' request for sanctions, sanctions are denied for failure to identify the sanctions in the notices of motion. ["A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought." Code Civ. Proc., § 2023.040.] <i>Plaintiffs to give notice</i>
207	Labor Commissioner of the State of California, Division of Labor Standards Enforcement vs. Devank, LLC, 24-01420136	James H. Millane of Lanak & Hanna, P.C. ("Moving Attorney") moves to be relieved as counsel of record for defendant Titan Construction and Development. The motion is unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. All other requirements of the applicable California Rules of Court are satisfied. Accordingly, the motion is GRANTED. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) <i>Moving Attorney to give notice.</i>